

21STCV05404 21STCV05404

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Case Number: 21STCV05404 Hearing Date: June 30, 2026 Dept: 731

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES

DEPARTMENT 731

TENTATIVE RULING

B&S VENTURERS, INC., a California Corporation; BARJOR

SOLI PITHAWALLA, an individual,

Plaintiffs,

v.

AMGUARD INSURANCE COPMANY; CARMEN MARTINEZ, an individual,

and DOES 1 to 50, inclusive

Defendants.

Case No: 21STCV05404

Hearing Date: June 30, 2026

Calendar Number: 1

Plaintiff

B&S Ventures, Inc. moves to compel Defendant AmGuard Insurance Company to

serve further responses to Special Interrogatories (Set Three) Nos. 75 to 78, and Request for Production of Documents (Set Three) Nos. 78, 80, 84, 86, 88, and 89 pursuant to the Court's discovery order on December 17, 2025. The plaintiff also moves for sanctions of \$4,345 against the defendant.

The motion is GRANTED IN PART and DENIED IN PART as follows.

The request to compel further responses is GRANTED as to Estimating Supervisor Corey Massaro's estimates under the defendant's Estimate Review Team's 2020 guidelines. The defendant is ordered to produce the relevant documents, information, and/or compilation of data within 60 days of this ruling.

The request to compel further responses is otherwise denied.

The request for sanctions is denied.

Background

This is an insurance action. Plaintiffs B&S Ventures, Inc. ("BSV") and Barjor Soli Pithawalla (collectively, "Plaintiffs") allege that, after Defendant Carmen Martinez ("Martinez") negligently drove her car through their Harbor City restaurant on or about September 12, 2019, they submitted a timely insurance claim to their insurer, Defendant AmGuard Insurance Company ("AmGuard"), but Defendant unreasonably delayed the handling, adjustment, and resolution of their claim.

On February 10, 2021, Plaintiffs filed their Complaint against AmGuard, Martinez, and Does 1 to 50, inclusive, asserting causes of action for breach of contract, breach of the implied covenant of good faith and fair dealing, and negligence.

On September 28, 2023, Plaintiffs dismissed Martinez.

On September 11, 2025, BSV filed motions to compel AmGuard's further responses to Requests for Production of Documents, Set Three, and Special Interrogatories, Set Three.

On December 17, 2025, the Court granted BSV's motions in part, ordering AmGuard to serve further responses to certain interrogatories and requests for production within 60 days (the "December 17 Ruling").

On May 20, 2026, BSV filed the instant motion to compel AmGuard's compliance with the December 17 Ruling, arguing that the defendant has failed to produce all responsive documents and withheld responsive information in violation of the order.

On June 16, 2026, AmGuard filed its opposition.

BSV filed its reply on June 23, 2026,

Jury trial is set for November 2, 2026.

Legal Standard

"On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that ... [a] statement of compliance with the demand is incomplete[;] ... [a] representation of inability to comply is inadequate, incomplete, or evasive[; or] ... [a]n objection in the response is without merit or too general."¿ (Code Civ. Proc., § 2031.310, subd. (a).)

Similarly, "[o]n receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: ¶ (1) An answer to a particular interrogatory is evasive or incomplete. ¶ (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate. ¶ (3) An objection to an interrogatory is without merit or too general." (Code Civ. Proc., § 2030.300, subd. (a).)

If the motions are granted and the

responding party fails to provide the discovery responses, the court may impose monetary sanctions against that party. (Code Civ. Proc., §§ 2030.300, subd. (e); 2031.310, subd. (i); see also id. §§ 2023.010, subd. (g) [stating that misuse of the discovery process includes disobeying a court order to provide discovery responses]; 2023.030, subd. (a) [stating that courts may impose monetary sanctions for misuse of the discovery process if such sanctions are authorized by a discovery statute].)

Discussion

Before considering the merits of the motion, the Court reviews the Plaintiffs' allegations and the case's procedural history in greater detail to better understand the parties' positions and the relevance of the discovery in dispute.

In support of BSV's May 2025 motion to compel production of documents and reopen discovery, BSV's counsel attested to the following facts.

During the deposition of the defendant's Person Most Knowledge, Mark Burns ("Burns"), on May 6, 2025, BSV "learned for the first time that AmGUARD utilizes an internal unit, known as the Estimate Review Team, that reviews building property estimates submitted to AmGUARD during the handling and adjustment of an insurance claim. [BSV] further discovered that the Estimate Review Team operates under a set of written policies, procedures, and guidelines that are separate and apart from the AmGUARD claims handling policies, procedures, and guidelines previously produced by AmGUARD [during discovery]." (Declaration of Lindsey Downey, Esq., filed May 15, 2025, in support of ("ISO") Motion to (1) Compel Defendant to Produce Documents, and (2) Reopen Discovery for a Limited Purposes ("Downey Decl. ISO Reopen Discovery Motion"), ¶ 3.)

Plaintiffs also learned through subsequent discovery "that Corey Massaro ["Massaro"], was an Estimating Supervisor at AmGUARD's Estimate Review Team, and was directly involved in the adjustment of Plaintiff's claim." (Downey Decl. ISO Reopen Discovery Motion, ¶ 5.)

"Mr. Massaro reviewed repair estimates prepared by Defendant's retained independent building consultant, John Machin of Young & Associates, and instructed Mr. Machin to remove

various items from the estimate. Mr. Massaro also approved a figure for tenant improvements and betterments [for Plaintiffs' restaurant] that was lower than all submitted estimates—including Mr. Machin's revised estimate, which had been adjusted in accordance with Mr. Massaro's directive." (Downey Decl. ISO Reopen Discovery Motion, ¶ 5.) "While Plaintiff was previously aware of Mr. Massaro's role in the claim, Plaintiff did not know until the May 6, 2025 PMK deposition that he was part of the Estimate Review Team and that the team operated under a separate set of internal standards distinct from the claims handling materials previously produced by AmGUARD in discovery." (Id. at ¶ 7.)

In its motion to compel production of documents and reopen discovery, BSV argued that it "will be severely prejudiced if denied the opportunity to obtain documents and conduct limited discovery about AmGUARD's Estimate Review Team as this information [was] highly relevant to Plaintiff's claims of bad faith and punitive damages being asserted against AmGUARD in the instant action." (Downey Decl. ISO Reopen Discovery Motion, ¶ 15.)

On June 12, 2025, the Court held the hearing on and granted BSV's opposed motion to compel production of documents and reopen discovery, stating in relevant part:

"In the RFPs [i.e., Requests for Production] at issue, BSV requested document relating to AmGuard's policies and procedures, investigation, and adjustment relating to Plaintiff's claims. AmGuard produced no documents regarding the Estimate Review Team. AmGuard contends that this position is justified because BSV's RFPs did not request information about the Estimate Review Team by name. The Court disagrees. Documents regarding the Estimate Review Team's policies and procedures are necessarily relevant if it was involved in evaluating BSV's claim." (6/12/25 Minute Order, pp. 4-5.)

"[In addition, the motion to reopen discovery is granted because] ... BSV promptly sought discovery after learning of the Estimate Review Team's existence. Further, there is evidence suggesting that the Estimate Review Team, including Massaro, played a key role in the eventual decision on BSV's claim. BSV would be prejudiced if it were forced to go to trial without more complete information on the Estimate Review Team." (6/12/25 Minute Order, p. 5.)

Subsequently, on

September 11, 2025, BSV filed the underlying motions to compel AmGuard's further responses to Requests for Production of Documents, Set Three ("RFPs"), Nos. 75-89, 92, 95 and 96, and Special Interrogatories, Set Three ("SROGs"), Nos. 60-64, 68-72, and 74-78. AmGuard opposed both motions.

After the hearing on those motions on December 17, 2025, the Court issued the December 17 Ruling, stating as follows in relevant part:

Afte[r] reviewing all moving papers and considering all oral arguments, the Court rules as follows.

The Court orders that defendant produce further responses and responsive documents to the following discovery requests within 60 days. The parties are encouraged to meet and confer about the trial date.

The Court limits the discovery responses to (1) work by the estimate review team under the 2020 guidelines, which will include work for the years until the guidelines changed; (2) shall not include full claim files; and (3) shall not necessarily include portions of claim files unless there is a further meet and confer between the parties.

The Court makes this order with respect to the following discovery requests:

Interrogatories 60, 61, 74, 75, 76, 77, and 78.

Requests for Production 75, 76, 78, 80, 84, 86, 88, 89, 92, 95 and 96.

(12/17/25 Minute Order, p. 1.)

Plaintiff now moves to compel AmGuard's compliance with the December 17 Ruling, arguing that AmGuard violated the order by failing to provide all responsive documents or information concerning the following SROGs and RFPs.

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SROG 75: What percent of ESTIMATES for commercial property damage claims that were reviewed by YOUR ESTIMATE REVIEW TEAM, from

2018 to the present, were reduced in value and/or scope—whether in whole or in part—of the original estimate?

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SROG 76: What percent of ESTIMATES for commercial property damage claims that were reviewed by YOUR ESTIMATE REVIEW TEAM, from 2018 to the present, were increased in value and/or scope—whether in whole or in part—of the original estimate?

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SROG 77: What percent of ESTIMATES for commercial property damage claims that were reviewed by Corey Massaro, in connection with his role on YOUR ESTIMATE REVIEW TEAM, from 2018 to the present, were reduced in value and/or scope—whether in whole or in part—of the original estimate?

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SROG 78: What percent of ESTIMATES for commercial property damage claims that were reviewed by Corey Massaro, in connection with his role on YOUR ESTIMATE REVIEW TEAM, from 2018 to the present, were increased in value and/or scope—whether in whole or in part—of the original estimate?

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RFP 78: All DOCUMENTS and COMMUNICATIONS that evidence, reflect, or relate to the total number of commercial property damage claim ESTIMATES, from 2018 to the present, in which YOUR ESTIMATE REVIEW TEAM reduced the value and/or scope—whether in whole or in part— of the original estimate.

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RFP 80: All DOCUMENTS and COMMUNICATIONS that evidence, reflect, or relate to the number of ESTIMATES for commercial property damage claims, from 2018 to the present, that were increased—whether in value and/or scope, in whole or in part—by YOUR ESTIMATE REVIEW TEAM.

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RFP 84: All DOCUMENTS and COMMUNICATIONS that evidence, reflect, or relate to the number of ESTIMATES for commercial property damage claims, from 2018 to the present, that Corey Massaro reduced—whether in value and/or scope, in whole or in part—in connection with his role on YOUR ESTIMATE REVIEW TEAM.

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RFP 86: All

DOCUMENTS and COMMUNICATIONS that evidence, reflect, or relate to the number of ESTIMATES for commercial property damage claims, from 2018 to the present, that Corey Massaro increased—whether in value and/or scope, in whole or in part—in connection with his role on YOUR ESTIMATE REVIEW TEAM.

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RFP 88: All DOCUMENTS and COMMUNICATIONS evidencing the total dollar amount of ESTIMATES submitted to YOUR ESTIMATE REVIEW TEAM for commercial property damage claims, for each year from 2018 to present.

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RFP 89: All DOCUMENTS and COMMUNICATIONS evidencing the total dollar amount deducted by YOUR ESTIMATE REVIEW TEAM from ESTIMATES relating to commercial property damage claims, from each year from 2018 to the present.

(Separate Statement, filed May 20, 2026, pp. 3:11-28, 8:8-9:8.) The discovery requests defined “ESTIMATES” as “any and all repair and/or scope estimates relating to commercial property losses submitted to [Amguard], from 2018 to the present, that were reviewed by the ESTIMATE REVIEW TEAM.” (Id. p. 2:25-27.) They also defined “ESTIMATE REVIEW TEAM” as “the department and/or group of individuals identified by [Amguard’s] person most knowledgeable, Mark Burns during his depositions in the subject action.” (Id. at p. 3:1-3.)

BSV’s counsel testifies that AmGuard did not provide all documents and information requested by those SROGs and RFPs and, consequently, failed to comply with the December 17 Ruling for the following reasons. “In its responses, AmGuard states that approximately 7,900 claims were submitted to the Estimate Review Team. [However,] [t]he Xactanalysis report that AmGuard refers to in its responses to the subject discovery contains data pertaining to only 1,846 claims submitted to the Estimate Review Team. [Therefore], data from over 6,000 claims is missing from the Xactanalysis report, and none of the data in the Xactanalysis report pertains to estimates reviewed by Corey Massaro.” (Declaration of Attorney William A. Foster, filed May 20, 2026, ¶ 9.)

After reviewing the parties’

papers, the Court finds that AmGuard did not violate the December 17 Ruling.

Rather, the parties' dispute arose

out of their different interpretations of the ruling. BSV believed that the

Court required AmGuard to produce all responsive documents and information

subject to certain limitations. On the other hand, defense counsel interpreted

BSV's counsel's comments at the hearing to mean that BSV was only seeking

production of the Xactanalysis report. (See Declaration of Wynn C. Kaneshiro, ¶ 29 ["At the December 17,

2025 hearing, BSV's counsel reiterated that it was not interested in other

insureds' claim file materials but rather wanted aggregate data on estimates.

BSV's counsel argued that AmGUARD can generate reports using Xactanalysis that

would have the aggregate information on estimates"; id. at ¶ 31 ["In compliance with the Order,

AmGUARD served supplemental responses to the interrogatories and document

requests identified in the Order and produced additional documents including

the Xactanalysis Report that BSV requested at the hearing"].) The

December 17 Ruling does not support any of the parties positions as it neither

mentions or limits discovery to the Xactanalysis report nor does it require

AmGuard to produce data from all 7,900 claims that were submitted to its

Estimate Review Team. (The Law Firm of Fox & Fox v. Chase Bank, N.A. (2023)

95 Cal.App.5th 182, 203 ["The same rules apply in ascertaining the meaning of a

court order or judgment as in ascertaining the meaning of any other writing

[e.g., a contract]. [Citations]"; Civ. Code, § 1638 ["The language of a

contract is to govern its interpretation, if the language is clear and

explicit, and does not involve an absurdity"].)

Therefore, BSV's argument

that AmGuard violated the December 17 Ruling is unpersuasive.

Nevertheless, the Court

has established in prior rulings that the SROGs and RFPs seek information

relevant to Plaintiff's claims. Indeed, the Complaint alleges, among other

things, that AmGuard breached its duty of good faith and fair dealing towards

Plaintiffs by, among other things: "Ignoring estimates prepared by its own

consultants that identified the scope and value of certain aspects of the property loss as more than AmGuard

had initially contended, and instead undertaking efforts designed to minimize

the value of Plaintiffs' claim[.]" (Compl., ¶ 85(K).) The Complaint also

alleges that AmGuard violated several provisions of subdivision (h) of

Insurance Code section 790.03. (Compl., ¶¶ 88, 106.) That statute "prohibits

insurers from 'knowingly committing or performing with such frequency as to

indicate a general business practice' a variety of 'unfair claim settlement

practices.” (Colonial Life & Accident Ins. Co. v. Superior Court (1982) 31 Cal.3d 785, 790 (Colonial Life) [italics removed].) In Colonial Life, the California supreme court held that the discovery of the names, addresses, and files of other insurance claimants with whom a defendant insurer adjuster attempted settlements was relevant to the subject matter of the action and could lead to admissible evidence regarding “the frequency of alleged unfair settlement practices ...,” and “the elements for punitive damages [which] may be suggested by a pattern unfair practices.” (Id. at pp. 791-792.)

Therefore, the question remains whether AmGuard should be compelled to produce documents and/or information from data that could not be included in its Xactanalysis report.

Burns, Amguard's PMK, testifies that generating a similar report for the remaining 6,054 claims would be onerous and cost the company approximately \$587,238 for the following reasons. “In order to provide information on the 6,054 claims submitted from March 1, 2020 to June 22, 2022 that are not located on the Xactanalysis platform, AmGUARD would have to review the claim file to locate the original estimate, any subsequent estimates, determine the value of the estimates, the amount of reductions or increases and the rationale for any changes, if any, and attribute actions to individual team members (e.g., Corey Massaro), which may require cross-referencing internal communications and audit logs. Many files contain unstructured data (e.g., adjuster notes, email threads, scanned documents in claim files) that cannot be queried automatically. Determining whether an estimate was ‘reduced’ or ‘increased’ often requires subjective interpretation of file notes and supporting documentation. Additional technical resources may be needed to assist with data extraction, spreadsheet compilation, and validation. This review will take an average of 2.5 hours per file or 15,135 hours for the 6,054 claims. At the hourly rate of \$38.80 per hour, it will cost \$587,238 to conduct the review. It will take over 378 weeks or over 7 years for one person to complete the review. Notably, additional hours will be required to locate the responsive documents from each claim file to respond to the document demand.” (Burns Decl., filed June 16, 2026, ¶ 19.)

However, Burns has admitted that “[n]one of the estimates reviewed by Corey Massaro from March 2020 to July 30, 2021 [the end date of Massaro's employment with Amguard] are on the Xactanalysis platform.” (Burns

Decl., filed June 16, 2026, ¶¶

13, 14.) The Court agrees with BSV that, at a minimum, it is entitled “to the documents and data concerning the estimates by Corey Massaro” (Reply, p. 4:1-2.) BSV alleges that Massaro was directly involved in the adjustment of Plaintiffs’ insurance claim. Therefore, data concerning his estimates are relevant to this action.

AmGuard has not argued that compiling data from Massaro’s estimates alone would be unduly burdensome. Rather, its estimates have been from all remaining 6,054 claims that were submitted to the Estimate Review Team regardless of whether Massaro was involved. There is no evidence that compiling a report from Massaro’s estimates would be as expensive as it would have been for the company to do so for all remaining claims.

Therefore, the Court grants BSV’s request to compel AmGuard’s further responses to the SROGs and RFPs at issue. The production shall be narrowed to Massaro’s estimates and “under the 2020 guidelines” as previously limited by the December 17 Ruling.

BSV’s request for sanctions is DENIED.